

# Crl.Pet./139/2021 on 5 January, 2023

**Author: Malasri Nandi**

**Bench: Malasri Nandi**

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GAHC010013112021

THE GAUHATI HIGH COURT AT GUWAHATI  
(The High Court of Assam, Nagaland, Mizoram and Arunachal Pradesh)

PRINCIPAL SEAT AT GUWAHATI

Criminal Petition No. 139 of 2021

Sri Kanuram Bordoloi,  
Son of Late Tulsi Bordoloi,  
R/o- Village Nowkata,  
P.S.- Morigaon,  
District.- Morigaon, Assam

.....Petition

-Versus-

Smti Budheswari Mahanta Bordoloi,  
W/o-Sri Kanuram Bordoloi,  
Village- Rajagaon, Biharipatty,  
P.S.- Morigaon, P.O.- Morigaon,  
Assam:- 782105

.....Respon

|                              |   |                |
|------------------------------|---|----------------|
| Advocates for the petitioner | : | Mr K Singha,   |
| Advocate for the respondent  | : | None appeared. |

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BEFORE  
HON'BLE MRS. JUSTICE MALASRI NANDI

Date of Judgment : 05.01.2023

JUDGEMENT AND ORDER (CAV)

Heard Mr K Singha, learned counsel for the petitioner. None has appeared for and on behalf of the respondent.

2. The petitioner has filed an application under Section 482 of the Code of Criminal Procedure, 1973, read with Article 227 of the Constitution of India, challenging the Judgment and Order dated 23.12.2020, passed in Criminal Revision No. 29/2019, by the learned Sessions Judge, Morigaon, affirming the Judgment and Order dated 10.10.2019, passed by the learned CJM, Morigaon, in MR Case No. 6/2017, under Section 125 CrPC.

3. The facts in brief leading to filing of the criminal petition is that the respondent filed a petition under Section 125 CrPC before the learned CJM, Morigaon, claiming that she is the legally married wife of the petitioner and claimed monthly maintenance of Rs. 10,000/- from the petitioner. According to her, her marriage with the petitioner was held about 30 years back as per Hindu rites and customs. Since then, the respondent is residing in the house of the petitioner as his wife. Out of their wedlock, a male child was born, Mukuta Bordoloi by name, who is now major.

4. It is also alleged that after birth of their child, the petitioner developed an illicit relationship with a girl, Moloya Bordoloi. When the respondent came to know about the said affair she objected to the same, but the petitioner assaulted her and drove her out from his Page No.# 3/13 house. Finding no other alternative, she took shelter in the house of her maternal uncle, along with her son. After one year, the petitioner got married to Moloya Bordoloi.

5. After the said event, when the respondent wanted to file a case against the petitioner for her maintenance, the petitioner pacified the respondent by providing rented house and maintenance to the respondent at Morigaon town. Accordingly, the respondent along with her son started residing in a rented house at Morigaon town and the petitioner was providing them house rent as well as monthly maintenance regularly. However, from one year prior to lodging of the case for maintenance the petitioner did not pay any rent as well as monthly maintenance. Further the petitioner also promised to give landed property to her and his son, when he was confronted regarding non payment of rent as well as monthly maintenance, but the petitioner did not keep his promise and did not provide any maintenance, rent or property and thereafter the petitioner filed the maintenance case before the CJM, Morigaon, claiming maintenance from the petitioner.

6. During trial, the petitioner also submitted written statement in support of his defence, wherein the petitioner denied any relationship with the respondent. It is stated in the written statement that respondent is his own elder sister and both the parties are within prohibited degrees of relationship according to Hindu religion and no marriage could be solemnized between the parties as per Hindu Law.

7. During the proceeding before the trial Court, the respondent has examined herself and three other witnesses, PW-2, Upeswari Konwar, PW-3, Mukuta Bordoloi and PW-4, Haranath Patar and petitioner also adduced himself as DW-1.

8. After hearing both sides, learned trial Court allowed maintenance in favour of the Page No.# 4/13 respondent and which was affirmed by the learned Sessions Judge, on revision by observing that the respondent is the wife of the petitioner and she is entitled for maintenance.

9. Learned counsel for the petitioner has argued that the petitioner and the respondent are in brother-sister relationship and marriage cannot be held between the parties. It is also submitted that if any marriage is held in between such prohibited relationship it cannot be accepted as valid marriage.

10. It is further submitted that there was no relationship of husband and wife between the petitioner and the respondent, as no marriage was solemnized between them. According to the petitioner, the story of marriage was a mere concoction, but the learned trial Court as well as the learned revisional Court without considering the evidence adduced by the petitioner granted maintenance in favour of the respondent.

11. In support of his submission, learned counsel for the petitioner has placed reliance on the following case-law:-

(2018) (1) GLT 767; Mantush Choudhury @ Mantu Choudhury vs. State of Assam & Anr.

12. Though notice was served upon the respondent but none has appeared to represent the respondent before this Court, as a result of which, the case is decided after hearing the learned counsel for the petitioner.

13. I have gone through judgments of the learned trial Court as well as the learned Sessions Judge. I have also perused the scanned copy of the record.

14. Before proceeding further, it would be desirable to take note of definition of the term "Hindu" as given in Sub-section (3) of Section 2 of the Hindu Marriage Act, 1955, which reads Page No.# 5/13 as under:

"2(3). The expression 'Hindu' in any of this Act shall be construed as if it included a person who, though not a Hindu by religion, is, nevertheless, a person to whom this Act applies by virtue of the provisions contained in this section."

15. In so far as the question of marriage is concerned, the respondent as PW-1 in her evidence claimed that she is the legally married wife of the petitioner and after their marriage they lived together as husband and wife and out of their wedlock a male child was born and she has reiterated the same thing whatever she has stated in her claim petition.

16. In her cross-examination, PW-1 replied that her mother is the second wife of Tulsi Bordoloi of Nowkata. The name of his mother is Senehi Bordoloi. She is the only child of Senehi Bordoloi. Tulsi Bordoloi's first wife's son is the petitioner, Kanuram Bordoloi. After the death of Tulsi Bordoloi, she

was the legal heir, and she appealed before the public twice, demanding her share of property. Even though the public wanted to provide her the share of property, but Kanuram Bordoloi did not allow them to provide the said property.

17. PW-1 stated that she got married to Kanuram Bordoloi socially according to Hindu rituals in presence of a priest. The priest belonged to Kahibari and subsequently, he died. PW- 2 stated that she could not say who was the priest. Marriage was solemnized at Rajagaon and it was held at night. According to the PW-3, who is the son of the informant, he was born at his maternal uncle's house at Kumuraguri. He had not seen her grandmother, Senehi Bordoloi, who died before his birth.

18. PW-4 is Haranath Patar, He stated that the petitioner Kanuram Bordoloi is the son of Tulsi Bordoloi's first wife. The mother of the respondent passed away, while she was at the Page No.# 6/13 house of the petitioner. He had seen the marriage between the parties at Nowkota village. It was a marriage after elopement.

19. The petitioner was examined as DW-1 before the learned trial Court. Though he denied the marriage with the respondent in his evidence, but in his cross-examination, DW-1 replied that he knew the respondent and Senehi Bordoloi. He did not know when Kareng Mahanta and Senehi Bordoloi got married, That marriage took place when he was 5/6 years old. Budeheswari Bordoloi, who is the respondent in this case, is the child of Kareng Mahanta and Senehi Bordoloi. Buddheswari's father passed away when she was a child. Later on, Senehi Bordoloi got married to Tulsi Bordoloi. After the death of his first wife, Mogori Bordoloi, Tulsi Bordoloi got married to Senehi Mahanta Bordoloi.

20. Though DW-1 alleged that respondent is his sister, but from cross-examination of DW- 1, it reveals that respondent is the daughter of Kareng Mahanta and Senehi Bordoloi and the petitioner is the son of Mogori Bordoloi and Tulsi Bordoloi. After the death of Kareng Mahanta, the mother of the respondent, Senehi Bordoloi, got married to the father of the petitioner, Tulsi Bordoloi.

21. Now, let us see the requirements of Sections 5 and 7 of the Hindu Marriage Act, 1955 which read as under:

"5. Conditions for a Hindu marriage.--A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely-

(i) neither party has a spouse living at the time of marriage; (ii) at the time of marriage, neither party,

(a) is incapable of giving a valid consent to it in consequence of unsoundness of mind; or Page No.# 7/13

(b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or

(c) has been subject to recurrent attacks of insanity;

(iii) the bridegroom has completed the age of 21 years and the bride, the age of 18 at the time of marriage;

(iv) the parties are not within the degrees of prohibited relationship unless the custom or usage governing each of them permits of a marriage between the two;

(v) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two;

#### 7. Ceremonies of a Hindu marriage.-

(1) A Hindu marriage may be solemnized in accordance with the customary rites and ceremonies of either party thereto.

(2) Where such rites and ceremonies include the saptpadi (that is, the taking of seven steps by the bridegroom and the bride jointly before the sacred fire), the marriage becomes complete and binding when the seventh step is taken."

22. The contention of the learned counsel for the petitioner is that according to the petitioner, the marriage was held in presence of a priest, but the priest was not examined before the trial Court and the other witnesses, PW-2 had stated that he did not notice any priest in the marriage. According to the learned counsel for the petitioner, as there is a contradiction in the statements of witnesses regarding marriage in presence of the priest, it Page No.# 8/13 can be presumed that there was no marriage between the parties.

23. In the case of Mousumi Chakraborty v. Subrata Guha Roy, II(1991) DMC 74 (DB), a Division Bench of the Calcutta High Court observed as under:-

"12. The registration is not the sole proof of marriage in order to become a valid marriage. Section 7 of the said Act provides that the validity of a marriage will depend on observance of "customary rites and ceremonies". The expression "customary rites and ceremonies" means such Shastric ceremonies, which the caste or community to which party belongs is customarily following. Customary rites and ceremonies to be accepted must be shown to have been followed definitely as an essence of marriage ceremony from ancient times and recognized such ceremonies as obligatory. Two essential ceremonies to the validity of a marriage are (a) Invocation before the sacred fire and (b) saptapadi. Absence of these essential ceremonies invalidates the marriage. In our view; two ceremonies essential to the validity of a marriage, as stated above, have to be proved and that where the factum of marriage is disputed essential ceremonies constituting the marriage must have to be pleaded and proved. Evidence regarding the performance of marriage according to Hindu rites must be brought on record to show that there had been a valid marriage."

24. In the case of *Sridhar Dey v. Kalpana Dey*; AIR 1987 Cal 213, a Division Bench of Calcutta High Court took the view that unless the legality of the marriage is disputed on the specific ground of non-performance of essential ceremonies, a party proving the factum of marriage need not specifically prove further that all the ceremonies necessary to validate the marriage were also performed and in such a case, on the proof of the factum of marriage, a Court shall presume performance of all essential ceremonies. It also took the view that a Page No.# 9/13 presumption of this sort in favour of marriage would only be negated by disproving every reasonable possibility.

25. As regards distinct and different standards of proof in Civil and Criminal matter, in *Sridhar Dey v. Kalpana Dey* (supra), was a criminal matter, it was laid down that the standards of proof in Civil and Criminal matter are materially different and while preponderance of probability is good enough for a decision in civil jurisdiction, in a criminal trial affecting liberties of the citizen, the offence charged must be proved beyond all reasonable doubt. The Calcutta High Court relied upon the case of *N.G. Dastane v. S. Dastane*, where it was ruled that 'the civil standard of proof of preponderance of probabilities, and not the criminal standard of proof beyond reasonable doubt, applies to matrimonial proceedings under the Hindu Marriage Act and that it would be wrong to import criminal standard in trials of a purely civil nature'.

26. In *Kanwal Ram v. Himachal Pradesh Administration*, and *Priya Bala v. Suresh Chandra*; AIR 1971 SC 1153, the distinction has been scrupulously maintained and in both the cases even admission of marriage, which is sufficient to prove marriage for civil matrimonial disputes had been ruled to be not sufficient to prove marriage in prosecutions for bigamy or adultery. It was held in *Sridhar Dey v. Kalpana Dey*'s case that the requirements of criminal prosecution as to the positive proof of essential ceremonies as laid down in *Kanwal Ram* and *Priya Bala* (supra), could not be imported in a civil proceeding for restitution of conjugal rights unless the performance of those ceremonies is specifically disputed. Ultimately it was observed in *Sridhar Dey v. Kalpana Dey*, that once the factum of marriage is proved, everything necessary to validate such marriage, including the observation of essential ceremonies, shall be presumed, particularly in a case like the one at Page No.# 10/13 hand where either in the pleadings or in the evidence on the ground of non-performance of necessary ceremonies or otherwise for there was absolutely no cross-examination whatsoever of any of the witnesses on the evidence on these points.

27. From the above conspectus of law few propositions arise. Firstly, that there are distinct and different standards of proof for the civil and criminal matters and the standard of proof beyond any reasonable shadow of doubt, would not apply in civil matters; and in civil matters the preponderance of probability in favor of marriage would be sufficient to hold that all ceremonies were performed. Secondly, in such a matter it is to be presumed that all essential ceremonies have been performed unless and until the opposite party claims specifically that particular ceremony was not performed while the factum of marriage and performance of certain ceremonies are virtually evident in view of the statement of the petitioner and the respondent recorded in Court.

28. There is another facet in this regard. Supposing, for the sake of arguments it is accepted that the ceremonies have not been proved and there is a presumption in favor of ceremonies having taken place, the question would always be: "What shall be the impact of non-performance of ceremonies?"

Insofar as the criminal matters are concerned, it is essential that all the ceremonies must be proved beyond any reasonable shadow of doubt while it is not so in civil cases. But it is not so in civil matters.

29. In this connection, it is further notable that Sections 10 and 11 of the Hindu Marriage Act lay down the provisions which provide ground for declaring a marriage null and void or voidable. It is notable that marriage is required to be held void under Section 11 of the Act in case (i) either of the parties had a spouse living at the time of marriage; or (ii) the parties are Page No.# 11/13 within the degrees of prohibited relationship; or (iii) if they are sapindas of each other, i.e. in contravention of conditions specified in Clauses (i), (iv) and (v) of Section 5. A marriage could be held voidable if there was consent given in contravention of condition specified in Clause

(ii) of Section 5.

30. As regards the alleged non-performance of any valid marriage, the petitioner did not utter a single word that he has filed any case under Section 10 or 11 of Hindu Marriage Act, with a prayer for nullity of the marriage between the petitioner and the respondent and non- performance by itself would not be sufficient to declare marriage void or voidable.

31. In the case in hand, though the DW-1 denied the marriage with the respondent , but in his cross-examination, he admitted that the respondent is the daughter of Kareng Mahanta and Senehi Bordoloi. It transpires that the petitioner and the respondent are not brother and sister as alleged in his petition. The learned Sessions Judge thoroughly discussed on the matter of prohibited relationship and sapindas. I am in agreement with the decision of the learned Sessions Judge on that count.

32. Regarding claiming of maintenance by the respondent, it is a settled position of law that strict proof of marriage is not necessary for deciding an application under Section 125 CrPC.

33. In the case of Chanmuniya vs Virendra Kumar Singh Kushwaha & Anr.; reported in 2010 AIR SCW 6497, it was held by the Hon'ble Apex Court that the compensation can be awarded in case of live-in-relationships and the same also be allowed in proceeding under Section 125 CrPC and that a broad and expansive interpretation should be given to the term 'wife' to include even those cases where a man and woman have been Page No.# 12/13 living together as husband and wife for a reasonably long period of time, and strict proof of marriage should not be a pre-condition for maintenance under Section 125 of the Cr.P.C, so as to fulfil the true spirit and essence of the beneficial provision of maintenance under Section 125 CrPC.

34. In the case of Dhannulal & Ors vs Ganeshram & Anr; reported in AIR 2015 SCC 2382, it was held as under:-

"It is well settled that the law presumes in favour of marriage and against concubinage, when a man and woman have cohabited continuously for a long time. However, the presumption can be rebutted by leading unimpeachable evidence. A

heavy burden lies on a party, who seeks to deprive the relationship of legal origin. In the instant case, instead of adducing unimpeachable evidence by the plaintiff, a plea was taken that the defendant has failed to prove the fact that Phoolbasa Bai was the legally married wife of Chhatrapati. The High Court, therefore, came to a correct conclusion by recording a finding that Phoolbasa Bai was the legally married wife of Chhatrapati."

35. Reverting back to facts of the present case, the petitioner though denied the marriage with the respondent but from his cross-examination, we can come to the conclusion that both the petitioner and respondent are not brother and sister and there is no prohibited degree of relationship between them and the witnesses of the respondent has proved that marriage between the parties was held and they were living together as husband and wife in the house of the present petitioner. As the learned trial Court has concluded that the respondent wife is unable to maintain herself, the said finding is affirmed.

36. In the case of *Dukhtar Jahan vs Mohammed Farooq*; 1987 SCR (1)1086, it was Page No.# 13/13 held as under:-

"Proceedings under Section 125 of the Code of Criminal Procedure are of a summary nature and are intended to enable destitute wives and children, the latter whether they are legitimate or illegitimate, to get maintenance in a speedy manner."

37. In the case of *K.Vimal vs K.Veerawamy*; 1991 SCC (2) 375, it has been further opined as under:-

"Section 125 of the code of Criminal Procedure is meant to achieve a social purpose. The object is to prevent vagrancy and destitution. it provides a speedy remedy for the supply of food, clothing and shelter to the deserted wife."

38. Coming to the case in hand, it appears that the petitioner has sufficient landed properties from which he is earning Rs. 25,000/- in a month, which he has not denied, either in his written statement or in his evidence.

39. In view of the aforesaid analysis, the criminal petition is dismissed. The petitioner is directed to pay monthly maintenance along with arrear amount to the respondent, as per order of the learned trial Court.

JUDGE Comparing Assistant